

(Accused In Jail)

IN THE COURT OF THE LEARNED METROPOLITAN MAGISTRATE,  
PATIALA HOUSE COURTS, NEW DELHI

Bail Application No. 123 of 2025

Rajeev Kumar .....Applicant/Accused

VERSUS

State (NCT of Delhi) .....Respondent

Under Sections: 117 & 351 BNS, 2023

Police Station: Connaught Place, New Delhi

F.I.R. No. 121 of 2025

**Regular Bail Application under Section 480 of the Bharatiya**  
**Nagarik Suraksha Sanhita, 2023**

**IT IS MOST RESPECTFULLY SUBMITTED AS UNDER:**

1. That the applicant Rajesh Kumar, aged about 35 years, has been made an accused in the above-noted case and he is a permanent resident of Delhi and a law-abiding citizen of this country.
2. That the present bail application is being filed under section 480 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (*Hereinafter referred to as BNSS*), seeking a grant of the regular bail in the **FIR No. 121 of 2025** registered at Police Station Connaught Place, New Delhi, for the offences punishable under sections 117 (Voluntarily causing grievous hurt) and 351 (Criminal intimidation) of the Bharatiya Nyaya Sanhita, 2023 (*Hereinafter referred to as BNS*).
3. That the applicant was arrested on **10.05.2025** in connection with the above-mentioned case, arising out of a neighbourhood dispute between the applicant and the complainant.
4. That the alleged incident occurred due to a sudden provocation arising out of certain inappropriate words exchanged between the parties. No weapons were involved and the complainant sustained only minor injuries for which he was treated at District Hospital, New Delhi and discharged withing 24 hours.
5. That the applicant is a first-time offender with no prior criminal history. He has cooperated throughout the investigation of this case and has been falsely implicated due to personal enmity.

**GROUND FOR BAIL:**

1. The alleged offences under sections 117 and 351 of BNS are not heinous in nature and the injuries suffered by the complainant are minor.

2. The applicant is a permanent resident of Delhi with a fixed address and there is no likelihood of him absconding or evading the law.
3. The applicant has joined the investigation whenever required and he is willing to do so in the future.
4. There is no possibility of the applicant influencing or threatening the witnesses as they are known to both the parties.
5. The applicant is willing to comply with all conditions that may be imposed by this Hon'ble Court while the granting bail.
6. The Hon'ble Supreme Court of India in the case of *State of Rajasthan v. Balchand* (1977) 4 SCC 308, held that “*bail is the rule and jail the exception*,” emphasizing personal liberty under Article 21 of the Constitution of India.
7. In *Dataram Singh v. State of U.P.* (2018) 3 SCC 22, The Hon'ble Supreme Court of India has held that granting bail should be the norm and refusal an exception, particularly where the accused is not likely to tamper with evidence or flee from justice.

**PRAYER:**

In the light of the above-mentioned facts and circumstances, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

1. Grant regular bail to the applicant/accused Rajeev Kumar in connection with FIR No. 121 of 2025, Police Station Connaught Place, New Delhi under sections 117 and 351 of the BNS, 2023; and
2. Pass such other or further orders as may be deemed just and proper in the best interest of Justice.

**Dated: 08.10.2025**

**Applicant**

Rajeev Kumar

(Accused)

**Through Counsel.**

*Alshan Husain Shah, Legal Intern,*

*AAR Attorney Alliance Advocates LLP*

**IN THE COURT OF THE LEARNED METROPOLITAN MAGISTRATE,  
PATIALA HOUSE COURTS, NEW DELHI**

Bail Application No. *123 of 2025*

Rajeev Kumar .....Applicant/Accused

**VERSUS**

State (NCT of Delhi) .....Respondent

Under Sections: 117 and 351 of BNS, 2023

Police Station: Connaught Place, New Delhi

F.I.R. No. 121 of 2025

**Affidavit in Support of Regular Bail Application**

I, Mr. Rajeev Kumar, S/o Mr. X Kumar, aged about 35 years, resident of ABC, Connaught Place, New Delhi - 110001, do hereby solemnly affirm and declare as under:

1. That I am the Applicant/Accused in the accompanying Regular Bail Application filed under Section 480 of the Bharatiya Nagarik Suraksha Sanhita, 2023, in connection with FIR No. 121 of 2025, registered at Police Station Connaught Place, New Delhi, for offences under Sections 117 and 351 of the Bharatiya Nyaya Sanhita, 2023.
2. That the above-mentioned case arose out of a neighbourhood dispute in which there was a verbal exchange of certain inappropriate words between me and the complainant. No weapons were used and the complainant had sustained only minor injuries and was discharged within 24 hours of his medical treatment.
3. That I have been falsely implicated in the above stated case due to misunderstanding and personal enmity. I had no intention to cause any harm and the alleged incident occurred in the heat of the moment.
4. That I am a first-time offender having no previous criminal record or involvement in any other criminal case and I have fully cooperated with the Police during the investigation.
5. That I am a permanent resident of Delhi and I have my residence and employment within the same jurisdiction of this Hon'ble Court. Hence, there is no possibility of me absconding or tampering with the witnesses.
6. That I assure to abide by all the conditions that may be imposed on me by this Hon'ble Court while granting me the bail, including regular appearances during trial and full cooperation in the proceedings.
7. That I further assure not to hurt, threaten or promise any person acquainted with the facts of this case and will maintain peace and harmony in my neighbourhood.
8. That the present affidavit is being filed in the support of the accompanying Regular Bail Application, which may be read as a part of this affidavit.

**PRAYER:**

In view of the above stated facts and circumstances, it is most respectfully prayed that this Hon’ble Court may kindly be pleased to:

1. Grant Regular Bail to the applicant/accused in connection with the FIR No. 121/2025, registered at Police Station Connaught Place, New Delhi, under Sections 117 and 351 of the Bharatiya Nyaya Sanhita, 2023; and
2. Pass such other or further orders as this Hon’ble Court may deem fit and proper in the best interest of Justice.

**DEPONENT**

Rajeev Kumar  
(Applicant/Accused)

**VERIFICATION:**

I, Rajeev Kumar, the above-named deponent, do hereby verify that the contents of this affidavit from paragraph no. 1 to 8 are true and correct to the best of my knowledge and belief and nothing has been concealed.

Verified at New Delhi on this **8th day of October, 2025**.

**DEPONENT**

Rajeev Kumar  
(Applicant/Accused)

**Through Counsel.**

*Alshan Husain Shah, Legal Intern,*  
*AAR Attorney Alliance Advocates LLP*